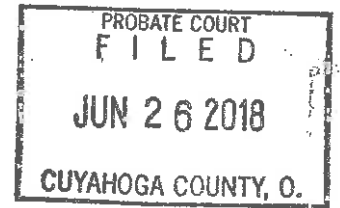


IN THE COURT OF COMMON PLEAS
PROBATE DIVISION
CUYAHOGA COUNTY, OHIO



ARTHUR P. DUECK, et al.

Plaintiffs,

vs.

THE CLIFTON CLUB COMPANY, et al.,

Defendants.

) CASE NO. 2012 ADV 179424
)
) JUDGE ANTHONY J. RUSSO
)
)
) JUDGMENT ENTRY
)
)
)

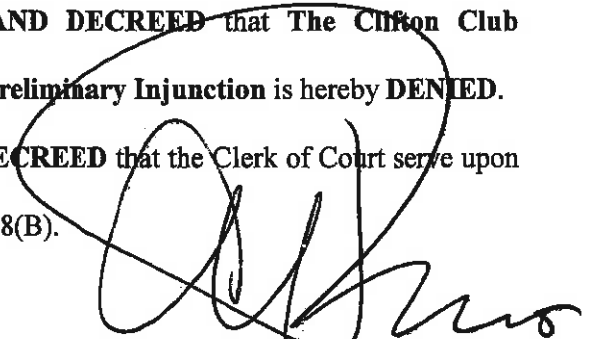
This matter was brought before the Honorable Judge Anthony J. Russo, Presiding Judge of the Probate Division of the Court of Common Pleas on **The Clifton Club Company's Motion for Temporary Restraining Order and Preliminary Injunction** filed by attorney Adam M. Fried on behalf of defendant, The Clifton Club Company, on May 17, 2018.

This Court finds, upon review of the file in its entirety, that defendant's Motion for Temporary Restraining Order and Preliminary Injunction is not well-taken and should be denied. On October 10, 2017, this Court issued a final Judgment Entry pursuant to Ohio Rules of Civil Procedure Rule 58. This Court lifted the Stay of the aforementioned Order upon the Ohio Supreme Court rejecting the appeal by way of Judgment Entry issued March 28, 2018. Pursuant to the Eight District Court of Appeals Decision, this case is concluded, and the only outstanding matter pending before this Court is attorney fees. Therefore, defendant's motion is improper and should be denied.

IT IS THEREFORE ORDERED, ADJUDGED AND DECREED that The Clifton Club Company's Motion for Temporary Restraining Order and Preliminary Injunction is hereby **DENIED**.

IT IS FURTHER ORDERED, ADJUDGED AND DECREED that the Clerk of Court serve upon all parties notice of this Judgment Entry pursuant to Civil Rule 58(B).

IT IS SO ORDERED.


JUDGE ANTHONY J. RUSSO

2012ADV179424



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PROBATE COURT OF CUYAHOGA COUNTY
DIVISION OF THE COURT OF COMMON PLEAS
1 LAKESIDE AVE. W.
CLEVELAND, OHIO 44113

ANTHONY J. RUSSO
PRESIDING JUDGE

LAURA J. GALLAGHER
JUDGE

JOHN R. HOMOLAK
COURT ADMINISTRATOR

RICHARD L. GEDEON
HEIDI M. KOENIG
SENIOR MAGISTRATES

DAVID M. MILLS
DIRECTOR OF
GUARDIANSHIP SERVICES

June 26, 2018

Adam M. Fried, Esq.
Holly Marie Wilson, Esq.
Julian Emerson, Esq.
Reminger Co., LPA
101 W. Prospect Avenue, Suite 1400
Cleveland, OH 44115

Re: 2012 ADV 179424
Arthur P. Dueck, et al. vs. The
Clifton Club Company, et al.

Counselors:

Enclosed please find a copy of the Judgment Entry entered this date, relative to the above-captioned matter.

Sincerely,



Susan Schwarten
Judicial Assistant

/ss

Enclosure

cc: Dennis R. Rose, Esq.
Casey J. McElfresh, Esq.
Terry J. Evans, Esq.
✓ Karen S. McQueen, Esq.
Kip Reader, Esq.
File